

PASSED

CHICKASAW TRIBAL LEGISLATURE

**Permanent Resolution Number 10-16
Authorization for Attorney Action**

WHEREAS, in accordance with Article VII, Sections 4 and 7 of the Constitution of the Chickasaw Nation, the Chickasaw Tribal Legislature shall enact rules and regulations pertaining to the Chickasaw Nation, and shall make decisions pertaining to the acquisition, leasing, disposition and management of real property, subject to federal law, and

WHEREAS, in accordance with Article XI, Section 1 of the Constitution of the Chickasaw Nation, the Governor shall perform all duties appertaining to the office of Chief Executive. He shall sign official papers on behalf of the Nation, and

WHEREAS, the Chickasaw Nation has the opportunity to attempt to recover damages suffered from its joint venture in the Chickasaw Tool Company, and

WHEREAS, attorneys representing the Chickasaw Nation are prepared to initiate legal actions to attempt to recover those damages, and

WHEREAS, the Governor of the Chickasaw Nation has asked for the Legislature's approval.

NOW, THEREFORE, BE IT RESOLVED, that the Chickasaw Tribal Legislature approves of the Chickasaw Nation and the Chickasaw Tool Company joining in an action for damages against O-Ratchet Company and/or Russell Fryman.

BE IT FURTHER RESOLVED, that the Governor of the Chickasaw Nation and the Chickasaw Tribal Legislature approves of Chickasaw Nation general counsel, Bob Rabon, commencing said suit on behalf of the Chickasaw Nation.

BE IT STILL FURTHER RESOLVED, that the Governor of the Chickasaw Nation is authorized to retain Joe Stamper, of Stamper, Otis and Burrage, from Antlers, Oklahoma, to represent the Chickasaw Tool Company, at the expense of the Chickasaw Nation, with monies to be expended from the Tribal General Fund.

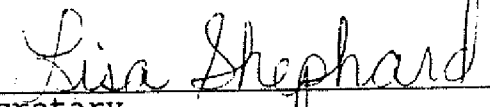
BE IT STILL FURTHER RESOLVED, that the Chickasaw Nation general counsel, Bob Rabon, shall report to the Tribal Legislature at the Committee of the Whole Meeting on the Monday preceding the Friday Regular Session, every month, or as otherwise requested.

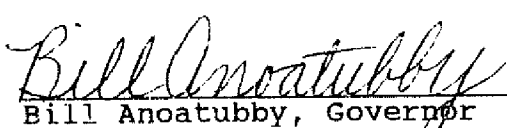
BE IT STILL FURTHER RESOLVED, that the Chickasaw Tribal Legislature shall determine whether to continue litigation and legal expenses.

BE IT STILL FURTHER RESOLVED, that, at such time as the Legislature shall discontinue said authorization, the Governor of the Chickasaw Nation shall immediately cease to allow the Chickasaw Nation general counsel, Bob Rabon, to continue said suit on behalf of the Chickasaw Nation, shall immediately cease to retain Joe Stamper to represent the Chickasaw Tool Company, and shall immediately cease to expend tribal funds for said suit.

Executed in Regular Session of the Chickasaw Tribal Legislature, meeting at Ada, Oklahoma, on March 19, 1993, by a vote of 12 ayes, 0 nays, and 0 abstentions.


Chairperson
Chickasaw Tribal Legislature


Secretary
Chickasaw Tribal Legislature

Concur: 
Bill Anoatubby, Governor
The Chickasaw Nation

Date: MAR 19 1993

CHICKASAW TRIBAL LEGISLATURE

Permanent Resolution Number 10-16 Authorization for Attorney Action

Explanation: The Chickasaw Nation has the opportunity to attempt to recover damages suffered from its joint venture in the Chickasaw Tool Company, and attorneys representing the Chickasaw Nation are prepared to initiate legal actions to attempt to recover those damages, and the Governor of the Chickasaw Nation has asked for the Legislature's approval.

The Chickasaw Tribal Legislature approves of the Chickasaw Nation and the Chickasaw Tool Company joining in an action for damages against O-Ratchet Company and/or Russell Fryman.

The Governor of the Chickasaw Nation and the Chickasaw Tribal Legislature approves of Chickasaw Nation general counsel, Bob Rabon, commencing said suit on behalf of the Chickasaw Nation.

The Governor of the Chickasaw Nation is authorized to retain Joe Stamper, of Stamper, Otis and Burrage, from Antlers, Oklahoma, to represent the Chickasaw Tool Company, at the expense of the Chickasaw Nation, with monies to be expended from the Tribal General Fund.

The Chickasaw Nation general counsel, Bob Rabon, shall report to the Tribal Legislature at the Committee of the Whole Meeting on the Monday preceding the Friday Regular Session, every month, or as otherwise requested.

The Chickasaw Tribal Legislature shall determine whether to continue litigation and legal expenses.

At such time as the Legislature shall discontinue said authorization, the Governor of the Chickasaw Nation shall immediately cease to allow the Chickasaw Nation general counsel, Bob Rabon, to continue said suit on behalf of the Chickasaw Nation, shall immediately cease to retain Joe Stamper to represent the Chickasaw Tool Company, and shall immediately cease to expend tribal funds for said suit.

Presented by: Mr. Gary Carter, Chairman
Land Development Committee